

		Paragraph 7.5.2 of the settlement agreement states that the administrator shall make the final determination as to the authenticity of an opt-out request. The documents should reflect instead that the court will ultimately decide any unresolved dispute regarding the authenticity of an opt-out request. Paragraphs 7.6 and 7.8.4 of the settlement agreement states that the Administrator will resolve any workweek disputes. The documents should reflect instead that, while the Administrator and the parties will attempt to resolve any such dispute, the court will ultimately decide any unresolved dispute. The following corrections must be made to the class notice: • Rather than having class members prepare their own opt-out requests, the class notice must include an exclusion form that class members can complete and submit. The form should be referenced in the class notice. • The enhancement award requested for each named plaintiff must be accurately described and clarified in the class notice in Section 7 on Page 4. • The Class Period described on Pages 1 and 2 of the class notice must match the class period defined in the settlement agreement, which ends on the date the court grants preliminary approval of this settlement, not December 31, 2025. • Every Defendant should be listed in the description of the lawsuit at the top of Page 3 of the class notice. • The releases on Page 6 of the class notice should match the releases described in the settlement agreement. Plaintiffs are ordered to give notice of this ruling to the LWDA and Defendants.
8	30-2024-01396627 Cayon vs. Zions Bancorporation, N.A.	The hearing on plaintiff's motion for approval is CONTINUED to October 25, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief must be filed at least 16 court days before the hearing and must address as necessary each of the below points. The parties must provide redlined copies for all revised documents as well as revised settlement provisions.

The court has reviewed and considered the papers filed in support of plaintiffs' motion for approval of a \$464,552 PAGA settlement. The court has the following questions and comments:

As to the Settlement:

1. Plaintiffs should provide their anticipated total compensation to be received (including for any individual claims released by individual settlement or otherwise, and excluding any enhancement payment).
2. Counsel states defendant elected to end the Settlement Period on 12-05-2025, which corresponds to 44,344 pay periods. ROA 67 ¶ 13. The "Settlement Period" (¶ 12) needs to be amended to reflect this. Additionally, the language permitting any change to the Settlement Period must be removed. ¶ 14 (c) ("In the alternative, Defendant may elect to change the end date of the Settlement Period to correspond to the last date on which the total number of Pay Periods was not in excess of Forty-Four Thousand Three Hundred Forty-Four (44,344), which is a 5% increase."). The escalator shall be operative in the event the actual number of pay periods during the Settlement Period exceeds 44,344 by any amount.
3. What are the amounts of the estimated high and low individual PAGA awards?
4. The administration costs must be limited by a not to exceed amount; a provision providing for an "estimated" amount will not be approved. ¶ 17.
5. The release (¶ 23) is problematic in numerous respects.
 - a. The court will not approve a release that is effective prior to full funding of the settlement. ¶ 23 (purporting to make release effective upon "entry of the settlement approval Order and Judgment").
 - b. "Settled Claims" is a defined term (¶ 11); a separate, overlapping definition "Released

		PAGA Claims” should be removed. ¶ 23. c. The term “PAGA Period” is not defined in the settlement and should be removed. ¶ 23. d. The following is unnecessary, vague, and or confusing and should be removed from paragraph 23: “the Released Parties from all claims for PAGA penalties that were alleged, or reasonably could have been alleged during the PAGA Period, based on the facts stated in the PAGA Complaint and the PAGA Notices filed by Plaintiffs including claims for (1) failure to pay overtime wages; (2) failure to pay minimum wages; (3) failure to provide meal periods; (4) failure to provide rest periods; (5) failure to provide accurate wage statements; and (6) claims for statutory penalties for violation of California Labor Code sections 201-204, 226, 226.7, 510, 512, 516, 558, 1174, 1194, 1198, and 2698, et seq., and California Business and Professions Code section 17200 et seq As a result of this release, Plaintiff, the State of California, and the Aggrieved Employees will not be able to bring a claim or seek civil penalties based on the Settled Claims that took place during the PAGA Period.” 6. The “Released Parties” provision (¶ 9) is overbroad and will not be approved to the extent it includes vague/unidentified third parties including “past, present, and future direct or indirect,” “past, present, and future,” “attorneys, insurers, reinsurers, and any individual or entity which could be jointly liable with Defendant.” 7. The injunction (¶ 24) should be removed in its entirety. Res judicata is sufficient. 8. Plaintiffs’ counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. 9. Plaintiff’s counsel must provide a lodestar analysis, including copies of time records, billing statements,
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		or other records contemporaneously documenting the work performed and time spent detailing the specific tasks performed on the case, the time spent on each task, and the individual(s) who performed the task. 10. Plaintiffs' counsel seeks attorneys' fees totaling 1/3 of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount. Plaintiff's counsel should address in the supplemental filings whether any such unique circumstances exist here. 11. Plaintiffs' counsel seeks litigation costs in the amount of \$16,948.77. Anticipated costs (\$88.19) are not awarded and should be removed. Additionally, nonrecoverable items such as postage (\$48.99), mailing (\$25.60) and copying (\$15.75) charges should be removed. A paid invoice substantiating the mediation fee request (\$15,000) must be provided. 12. The court is unlikely to approve an enhancement award in excess of \$5,000 per plaintiff absent unique circumstances. Plaintiffs should address in the supplemental filing whether any such unique circumstances exist here. 13. All parties should state, in declarations filed with the court, whether they are aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declarations shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the proposed settlement on that case. <u>As to the Notice:</u> 14. The notice should be revised consistent with the above. ROA 67 Ex. 1(A). 15. Insert "aggrieved" before "employees" in the last sentence of ¶ 2.
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		16. Is there an intended distinction by referring only to “representative” PAGA claims? ¶ 3. 17. Identify the statutory percentage “portion” for both the LWDA and aggrieved employees. ¶ 3. 18. Include the proposed disbursements. 19. Inform aggrieved employees they may not opt out of the settlement. ¶ 5. 20. Does the notice need to be prepared in languages other than English? 21. How will aggrieved employees be notified that judgement has been entered? <u>As to the Proposed Order:</u> 22. The proposed order should be revised consistent with the above. ROA 61. 23. Change the document title to mirror the document footer. 24. Remove the attorney information from the caption page. 25. The operative settlement/amendments, and the notice should be attached as exhibits. At 1 n.1, ¶ 5. 26. Attorney costs are not awarded on an “up to” basis. ¶ 10. 27. Change “directs” to “orders” and add “and the settlement administrator” after “parties” in paragraph 3. 28. The same issues above apply to the release and the released parties. ¶ 14. 29. Add that plaintiff must also file proof the judgment was served on the LWDA. ¶ 15.
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9	30-2023-01317634 Lopez vs. Nutrition Corp., Inc.	Counsel Jose Garay of Jose Garay, APLC’s (“Counsel”) Motion to Be Relieved as Counsel for Plaintiff Oscar Garcia Lopez (“Plaintiff”) is GRANTED ON THE CONDITION THAT a proposed order is provided to the court within five (5) days of this ruling. (CCP § 284(2).) Counsel has substantially complied with the requirements of CRC Rule 3.1362. However, counsel did not file a proof of service showing service on their client and on Defendant of a proposed order (Judicial Counsel Form MC-053), as required by Cal. Rules of Court, Rule 3.1362(d), and did not lodge a proposed order with the court with their moving papers, as required by Cal. Rules of Court, Rule 3.1362(e). IT IS ORDERED THAT Notice of Entry of Order and Proof of Service must be filed by Counsel. Counsel remains counsel for Plaintiff until Proof of Service upon Plaintiff is filed. The court sets a status conference for August 19, 2026 at 9:00 a.m. to determine whether Plaintiff intends to retain new counsel in order to proceed with this action, which includes a PAGA claim. “PAGA authorizes ‘an aggrieved employee,’ acting as a proxy or agent of the state Labor and Workforce Development Agency (LWDA), to bring a civil action against an employer . . .” (<i>Adolph v. Uber Techs., Inc.</i> (2023) 14 Cal. 5th 1104, 1113.) Accordingly, Plaintiff is an agent of the LWDA in this PAGA action, but the LWDA’s interests in a PAGA action must be represented by licensed counsel.